

House File 303

S-3015

1 Amend House File 303, as passed by the House, as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. Section 514F.8, Code 2025, is amended by adding
5 the following new subsections:

6 NEW SUBSECTION. 1A. a. A utilization review organization
7 shall provide a determination to a request for prior
8 authorization from a health care provider as follows:

9 (1) Within forty-eight hours after receipt for urgent
10 requests.

11 (2) Within ten calendar days after receipt for nonurgent
12 requests.

13 (3) Within fifteen calendar days after receipt for
14 nonurgent requests if there are complex or unique circumstances
15 or the utilization review organization is experiencing an
16 unusually high volume of prior authorization requests.

17 b. Within twenty-four hours after receipt of a prior
18 authorization request, the utilization review organization
19 shall notify the health care provider of, or make available to
20 the health care provider, a receipt for the request for prior
21 authorization.

22 c. A utilization review organization shall conduct an annual
23 review and submit the findings in a report to the commissioner
24 pursuant to the reporting procedures and deadlines established
25 by the commissioner. The commissioner shall publish, within
26 sixty calendar days of receipt, the report on a publicly
27 accessible internet site. The annual report shall include all
28 of the following:

29 (1) The total number of, and percentage of, urgent prior
30 authorization requests that the utilization review organization
31 approved, aggregated for all health care services and items.

32 (2) The total number of, and percentage of, urgent prior
33 authorization requests that the utilization review organization
34 denied, aggregated for all health care services or items.

35 (3) The total number of, and percentage of, nonurgent prior

1 authorization requests that the utilization review organization
2 approved, aggregated for all health care services or items.

3 (4) The total number of, and percentage of, nonurgent prior
4 authorization requests that the utilization review organization
5 denied, aggregated for all health care services or items.

6 (5) The total number of, and percentage of, nonurgent
7 prior authorization requests that were complex or involved
8 unique circumstances that the utilization review organization
9 approved, aggregated for all health care services or items.

10 (6) The average and median time that elapsed between the
11 submission of a prior authorization request and a determination
12 by the utilization review organization for the prior
13 authorization request, aggregated for all health care services
14 or items.

15 (7) The average and median time that elapsed between the
16 submission of an urgent prior authorization request and a
17 determination by the utilization review organization for the
18 urgent prior authorization request, aggregated for all health
19 care services or items.

20 (8) The average and median time that elapsed between the
21 submission of a nonurgent prior authorization request and a
22 determination by the utilization review organization for the
23 urgent prior authorization request, aggregated for all health
24 care services or items.

25 NEW SUBSECTION. 2A. a. A utilization review organization
26 shall, at least annually, review all health care services for
27 which the health benefit plan requires prior authorization and
28 shall eliminate prior authorization requirements for health
29 care services for which prior authorization requests are
30 routinely approved with such frequency as to demonstrate that
31 the prior authorization requirement does not promote health
32 care quality, or reduce health care spending, to a degree
33 sufficient to justify the health benefit plan's administrative
34 costs to require the prior authorization.

35 b. A utilization review organization shall submit an annual

1 report containing the findings of the review conducted under
2 paragraph "a" to the commissioner pursuant to the reporting
3 procedures and deadlines established by the commissioner. The
4 commission shall publish, within sixty days of receipt, the
5 report on a publicly accessible internet site. The annual
6 report shall include all of the following:

7 (1) The total number of prior authorizations the
8 utilization review organization evaluated as part of the annual
9 review.

10 (2) The number of prior authorizations the utilization
11 review organization eliminated as a result of the annual
12 review, and the reason for the elimination.

13 (3) A list of prior authorizations that had at least eighty
14 percent of requests approved in the previous twelve months for
15 a specific health care service covered by a health benefit
16 plan, but which prior authorizations were retained due to
17 medical or scientific evidence, as defined in section 514J.102,
18 that justified continuing such requirement.

19 (4) The total number of prior authorization requests
20 submitted in the previous twelve months for each eliminated
21 prior authorization, and the total number of health care
22 providers that submitted a request for prior authorization
23 in the previous twelve months for each eliminated prior
24 authorization requirement.

25 (5) For each health care service for which prior
26 authorization was eliminated under subparagraph (2), the report
27 shall include data regarding any increase or decrease of ten
28 percent or greater in the average number of claims submitted
29 per health care provider for that health care service compared
30 to the twelve months immediately preceding the elimination of
31 the prior authorization.

32 NEW SUBSECTION. 3A. Complaints regarding a utilization
33 review organization's compliance with this chapter may be
34 directed to the insurance division. The insurance division
35 shall notify a utilization review organization of all

1 complaints regarding the utilization review organization's
2 noncompliance with this chapter. All complaints received
3 pursuant to this subsection shall not be considered public
4 records for purposes of chapter 22.>

5 2. Title page, by striking lines 1 and 2 and inserting
6 <An Act relating to prior authorization and utilization
7 review organizations.>

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